

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
Christina Alvarado and Keenan Brown,: Index Number:
Date Purchased:
: Date Filed:

Plaintiff : SUMMONS

-against- :

City of New York, New York City Police Department, :
Lieutenant Barbara Fischer of the 75 Precinct, Police :
Officer Austin Ceris, Shield 24430 of the 83 Precinct :
and New York City Police Officers John Doe,: Plaintiff's residence is:
147-40 Archer Avenue
: Jamaica, New York

Defendants

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the incident occurred in Kings County.

Dated: June 27, 2022
Bronx, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Lieutenant Barbara Fischer of the 75 Precinct

Police Officer Austin Ceris, Shield 24430 of the 83 Precinct

New York City Police Officers John Doe,

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X	:	
Christina Alvarado and Keenan Brown,	:	
	:	
Plaintiff,	:	
	:	VERIFIED COMPLAINT
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Lieutenant Barbara Fischer of the 75 Precinct, Police	:	
Officer Austin Ceris, Shield 24430 of the 83 Precinct	:	
and New York City Police Officers John Doe,	:	
	:	
Defendants.	:	
-----X	:	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Christina Alvarado, (hereinafter referred to as “ALVARADO”) resides in Queens County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Keenan Brown, (hereinafter referred to as “BROWN”) resides in Queens County, State of New York.
3. That at all times hereinafter mentioned, Lieutenant Barbara Fischer of the 75 Precinct, (hereinafter referred to as “FISCHER”) was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Police officer Austin Ceris, Shield 24430 of the 83 Precinct, (hereinafter referred to as “CERIS”) was employed by the New York City Police Department.

5. New York City Police Officers John Doe, those officers involved in the arrest of ALVARADO and BORWN, (hereinafter referred to as “DOES) were employed by the New York City Police Department.
6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
7. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
8. That timey notice, as to both Plaintiffs, as required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
9. On or about February 9, 2022 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs’ claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
10. That on or about December 15, 2020 at approximately 1:00AM in the vicinity of 73 Linden Street, Brooklyn NY, Plaintiffs were leaving ALVARADO’s mother’s apartment. When Plaintiffs were at the main entrance they observed several men banging on the door demanding to be let in. After the men identified themselves as police, Plaintiffs let them in, whereupon the men then handcuffed and arrested Plaintiffs.
11. That at no time did Plaintiffs obstruct the administration of a governmental function.

12. That at no time did Plaintiffs resist arrest.
13. That at no time did Plaintiffs assault or harass any police officer.
14. That at no time had Plaintiff been engaged in any illegal or unlawful activity.
15. That after Plaintiffs were arrested they were transported to the 83 precinct.
16. That when Plaintiff was removed to the 83 precinct they were subjected to a strip search and that nothing of an illegal nature was recovered.
17. That while at the 83 precinct, the was placed into a cell with other detainees for several hours.
18. That after several hours of being held in a cell at the 83 precinct, Plaintiffs were transported to Kings County Central, located at 120 Schermerhorn Street, Brooklyn, NY.
19. That on or about December 16, 2020 Plaintiff Alvarado was arraigned in Kings County Criminal Court on docket CR-025817-KN, charging her with Assault in the Second Degree, Assault in the Third Degree, Obstructing Governmental Administration and Harassment in the Second Degree.
20. That on or about December 16, 2020 Plaintiff Brown was arraigned in Kings County Criminal Court on docket CR-025817-KN, charging him with Obstructing Governmental Administration and Harassment in the Second Degree.
21. That at the time of their arraignments, Plaintiffs were released and ordered to return to court.
22. That on and between December 16, 2020 and March 30, 2021 Plaintiff Brown made numerous court appearances until the matter was dismissed upon application of the Office of the Kings County District Attorney.

23. That on and between December 16, 2020 and January 28, 2022 Plaintiff Alvarado made numerous court appearances until the matter was dismissed upon application of the Office of the Kings County District Attorney.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

24. Plaintiff ALVARADO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 23, as if more fully stated herein at length.

25. That Defendants acted with actual malice toward Plaintiff ALVARADO and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

26. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

27. That as a result of the actions by Defendants, Plaintiff ALVARADO was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

28. That as a result of the Defendants' actions, Plaintiff ALVARADO has been unable to sleep.

29. That as a result of the Defendants' actions, Plaintiff ALVARADO was forced to miss multiple days of work.

30. That as a result of the Defendants' actions, Plaintiff ALVARADO was forced to miss multiple days of school.

31. That as a result of the Defendants' actions Plaintiff ALVARADO sustained damage to her person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior

courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

32. Plaintiff ALVARADO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff ALVARADO as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

34. Defendants having no lawful authority to arrest Plaintiff ALVARADO, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff ALVARADO is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

35. Plaintiff ALVARADO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

37. Plaintiff ALVARADO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. Plaintiff ALVARADO was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff ALVARADO to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff ALVARADO by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

39. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff ALVARADO by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

40. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff ALVARADO by claiming that she assaulted police officers, obstructed a governmental function and resisted arrest when they knew she had not.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

41. Plaintiffs ALVARADO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. At all times pertinent hereto, FISCHER, CERIS and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

43. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that FISCHER, CERIS and DOES committed within the scope of her employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

44. Plaintiff ALVARADO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. The City of New York and New York City Police Department's failure to provide adequate training and supervision to FISCHER, CERIS and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

46. The City of New York and New York City Police Department maintained a policy of arresting people and claiming that they possessed controlled substances when in fact they did not.

47. The City of New York and New York City Police Department maintained a policy of not disciplining or terminating police officers who engaged in claiming that people possessed controlled substances when they did in fact not.

48. That the City of New York and New York City Police Department were aware that there were fifty-two (52) Civilian Complaint Review Board Complaints levied against FISCHER, two of which substantiated.

49. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, *Inniss v. City of New York et al*, index number 11CV05728, United States District Court, Eastern District and yet they continued to employ FISCHER.

50. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, *Julien v. City of New York et al*, index number 14CV09942, United States District Court, Southern District and yet they continued to employ FISCHER.

51. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, *Abdullah Brown et al v. City of New York et al*, index number 14CV01897, United States District Court, Eastern District and yet they continued to employ FISCHER.

52. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, *Deshawn Alford v. City of New York et al*, index number 14CV07096, United States District Court, Eastern District and yet they continued to employ FISCHER.

53. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, *Wilson v. Louis et al*, index number 15CV01858, United States District Court, Eastern District and yet they continued to employ FISCHER.

54. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, *Whitney et al v. City of New York et al*, index

number 15CV05176, United States District Court, Eastern District and yet they continued to employ FISCHER.

55. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, Shepard v. Hudson et al, index number 15CV03295, United States District Court, Eastern District and yet they continued to employ FISCHER.

56. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, Alijarmeeck Mack v. City of New York et al, index number 14CV00967, United States District Court, Eastern District and yet they continued to employ FISCHER.

57. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, Devon Brown v. City of New York et al, index number 509498/2016, Supreme Court Kings County and yet they continued to employ FISCHER.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

58. Plaintiff ALVARADO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 57, as if more fully stated herein at length.

59. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

60. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

**AS AND FOR An EIGHTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

61. Plaintiff BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 60, as if more fully stated herein at length.

62. That Defendants acted with actual malice toward Plaintiff BROWN and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

63. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

64. That as a result of the actions by Defendants, Plaintiff BROWN was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

65. That as a result of the Defendants' actions, Plaintiff BROWN has been unable to sleep.

66. That as a result of the Defendants' actions, Plaintiff BROWN was forced to miss multiple days of work.

67. That as a result of the Defendants' actions, Plaintiff BROWN was forced to miss multiple days of school.

68. That as a result of the Defendants' actions Plaintiff BROWN sustained damage to her person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

69. Plaintiff BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 68, as if more fully stated herein at length.

70. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff BROWN as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

71. Defendants having no lawful authority to arrest Plaintiff BROWN, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff BROWN is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS

72. Plaintiff BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 71, as if more fully stated herein at length.

73. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff BROWN is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

74. Plaintiff BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 73, as if more fully stated herein at length.

75. Plaintiff BROWN was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff BROWN to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff ALVARADO by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

76. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff BROWN by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

77. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff BROWN by claiming that he obstructed a governmental function and resisted arrest when they knew she had not.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

78. Plaintiffs BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 77, as if more fully stated herein at length.

79. At all times pertinent hereto, FISCHER, CERIS and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

80. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that FISCHER, CERIS and DOES committed within the scope of her employment.

AS AND FOR A THIRTEETH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

81. Plaintiff BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 80, as if more fully stated herein at length.

82. The City of New York and New York City Police Department's failure to provide adequate training and supervision to FISCHER, CERIS and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

83. The City of New York and New York City Police Department maintained a policy of arresting people and claiming that they possessed controlled substances when in fact they did not.

84. The City of New York and New York City Police Department maintained a policy of not disciplining or terminating police officers who engaged in claiming that people possessed controlled substances when they did in fact not.

85. That the City of New York and New York City Police Department were aware that there were fifty-two (52) Civilian Complaint Review Board Complaints levied against FISCHER, two of which substantiated.

86. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, *Inniss v. City of New York et al*, index

number 11CV05728, United States District Court, Eastern District and yet they continued to employ FISCHER.

87. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, Julien v. City of New York et al, index number 14CV09942, United States District Court, Southern District and yet they continued to employ FISCHER.

88. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, Abdullah Brown et al v. City of New York et al, index number 14CV01897, United States District Court, Eastern District and yet they continued to employ FISCHER.

89. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, Deshawn Alford v. City of New York et al, index number 14CV07096, United States District Court, Eastern District and yet they continued to employ FISCHER.

90. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, Wilson v. Louis et al, index number 15CV01858, United States District Court, Eastern District and yet they continued to employ FISCHER.

91. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, Whitney et al v. City of New York et al, index number 15CV05176, United States District Court, Eastern District and yet they continued to employ FISCHER.

92. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, *Shepard v. Hudson et al*, index number 15CV03295, United States District Court, Eastern District and yet they continued to employ FISCHER.

93. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, *Alijarmeeck Mack v. City of New York et al*, index number 14CV00967, United States District Court, Eastern District and yet they continued to employ FISCHER.

94. That the City of New York and New York City Police Department were aware that FISCHER was the subject of a civil rights lawsuit, *Devon Brown v. City of New York et al*, index number 509498/2016, Supreme Court Kings County and yet they continued to employ FISCHER.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

95. Plaintiff BROWN repeats, reiterates and realleges the allegations contained in paragraphs 1 through 94, as if more fully stated herein at length.

96. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

97. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

 Jason Steinberger
Jason A. Steinberger, Esq.
Attorney for Plaintiffs
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(718) 585-2833

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: June 27, 2022

Jason Steinberger
Jason A. Steinberger